



**PRODUCT DESCRIPTION (PD)  
DEPARTMENT OF VETERANS AFFAIRS**

***Veterans' Health Administration***

***C.W. Bill Young Paging System Maintenance Renewal***

**Date: March 31, 2026  
VA-26-00047264  
PD Version Number: 1.0**

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## **1.0 PRODUCT REQUIREMENTS**

The Department of Veterans Affairs C.W. Bill Young Department of Veterans Affairs Medical Center, has a requirement for maintenance support of the in-house Paging System,. The Contractor shall provide maintenance support for C.W. Bill Young Department of Veterans Affairs Medical Center located at 10000 Bay Pines Blvd, Bay Pines, FL 33744. The period of performance will be a 12-month base period plus 2-12-month option periods.

| <b>Base Period</b>                                                                                                                                                                           |                 |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------|
| <b>Description</b>                                                                                                                                                                           | <b>Quantity</b> |
| Annual Maintenance for C.W. Bill Young Department of Veterans Affairs Medical Center Radio Paging Systems. Includes all Labor and Travel Expenses.<br>Period of Performance (POP): 12-months | 1               |
| <b>Option Period 1</b>                                                                                                                                                                       |                 |
| <b>Description</b>                                                                                                                                                                           | <b>Quantity</b> |
| Annual Maintenance Renewal for VA C.W. Bill Young Department of Veterans Affairs Medical Center Radio Paging Systems Includes all Labor and Travel Expenses POP: 12-months                   | 1               |
| <b>Option Period 2</b>                                                                                                                                                                       |                 |
| <b>Description</b>                                                                                                                                                                           | <b>Quantity</b> |
| Annual Maintenance Renewal for VA C.W. Bill Young Department of Veterans Affairs Medical Center Radio Paging Systems. Includes all Labor and Travel Expenses POP: 12-months                  | 1               |

## **1.1 MAINTENANCE SUPPORT**

The Contractor shall provide maintenance support for the paging system and its backup paging system inclusive of the following components:

1. *Paging Servers*—
  - i. Dell servers, model, CPU, Mem, Drive, OS Windows Server 2012 R2—(2 each)
  - ii. Paging Terminal Applications- Zetron (ZBaseW v5.4.1, ZLinkW v2.2.\*  
Note: DOSBox is NOT authorized for VA installation.
  - iii. Paging Server Applications- Note Page PageGate v8.4.\*,Server, Admin, Monitor, GUI Client, Web
  - iv. Maintain automated and manual fire alarm notification from designated Simplex fire alarm panel.
  - v. Backup & Recovery Server Application
2. *Expansion Serial Card*--
  - i. Manufacture, PCIe 2-port DB9 (1 in active server)
3. *Modem*—
  - i. Telit High Speed Modem, External, USB (1 in active server)
  - ii. Telit High Speed Modem continued activation and data plan
4. *PC/Workstation*—

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- i. Paging Applications configuration and update on designated VA PC/Workstation Paging Terminal Applications- Zetron (ZBaseW v5.4.1, ZLinkW v2.2.\* Note: Page PageGate v8.4\*, Admin, GUI Client, Web
  - ii. Paging System Admins workstations/PCs (4 each)
  - iii. Paging Applications running on User workstation/PCs (4 each)
5. *Paging Terminals*—
  - i. Zetron 2000 Series Terminal (2 each)
  - ii. Programming and updates to the Zetron paging terminals A & B
  - iii. Replacement of hard drives in each terminal
6. *Serial Switching*—
  - i. Zetron Line Transfer Unites (2 each)
  - ii. Zetron Standby Control
  - iii. Zetron Model 66 Transmitter Controllers (2 each)
  - iv. Pathway 4-Way A/B switch (custom)
7. *Transmitter Assembly*—
  - i. Harris MASTR III (2 each)
  - ii. Amplifier
  - iii. Power Supply
  - iv. Data and control cabling
8. *Antennas*—
  - i. Omni directional, RFS BA1012-2 (including mounting, adapters and cable)
  - ii. Data and Control cabling (including adapters and connections) (2 each)
9. *UPS (including batteries)*
  - i. APC SMT1500RM2U; (2 each)
  - ii. Replace Battery Replacement/APCRBC133, (replace 2 each)
10. *Fire Alarm Panel Data Stream*—Simplex uses Serial Cable, RS232—  
Manufacture, 5 signal wires and shield (Tx, Rx, Gnd, CTS, RTS).
  - i. Maintain automated and manual fire alarm notification.
  - ii. Maintain connection of Simplex Fire Alarm Panel Com A and Com B to the paging servers, Server #1 and Server #2
  - iii. Serial cable, RS232- 5 signal wires and shield (Tx, Rx, Gnd, CTS, RTS, shield).
11. *Serial data connections between Line Transfer unites ad Standby Control, Model 66 Transmitter Controllers, Terminals, PBX, Servers, and PC/Workstations, Simplex Fire Alarm Panels.*
  - i. Automated Switching and serial connections between Zetron Line transfer unite (multiport), Model 66 transmitter Controllers and Transmitters #1 and #2.
  - ii. Serial data connections between paging systems servers 1 and 2, to 4-way A/B switch to paging system Zetron terminals A and B
  - iii. Serial data connections between paging system servers 1 and 2, to serial control ports on 4-way A/B switch to Simplex Fire Alarm panel serial card COM A and COM B
  - iv. Serial data connections between paging system active server and Telit High Speed Modems

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- v. Serial data connection between paging system active server and Telit High Speed Modems  
Note: Zetron has a solution to use Serial to IP Adapter, GigiOne adapters attached to the serial port(s) of the paging terminal. However, Zetron 2000 series system uses an open password that does not meet VA security requirements. Zetron has confirmed they will NOT be updating this security vulnerability. Use of direct serial connections is required for connection to the Zetron 2000 series system in use with VA servers, workstations/PCs.
- 12. Serial Expansion Card- PCIe 2-Port Serial DB9
  - i. There is an existing card in each of the Dell paging servers, Server #1 & Server #2
- 13. Serial cable, RS232- Manufacture, 5 signal wires and shield (TX, RX, Gnd, CTS, RTS).
  - i. Required for connection of Simplex Fire Alarm Panel Com A and COM B to the paging servers, Server #1 and Server #2

- A. The Contractor shall during the annual review, update the paging system hardware on servers and designated workstations. The Contractor shall review the hardware configuration, system logs, and error reports, and provide a findings report to the designated Emergency Management office at Bay Pines VA HCS. The Contractor shall also assess the redundancy operations of the paging system hardware and report all findings to the designated Emergency Management office.

The Contractor shall review the paging system hardware configuration, logs, and error reports, assess the redundancy operations of the paging system hardware. The Contractor shall provide an annual system report to the designated Emergency Management Office detailing all findings.

The Contractor shall review the paging system and provide a component list and drawing of the block diagram and connections of the paging system components within the first 30 days of contract award. The Contractor shall provide an updated component list and block diagram drawing within 15 days following any addition, removal, connection, or disconnection of paging system components. The Contractor shall provide detailed recommendations for maintenance updates/upgrades.

The Contractor shall ensure continuous paging system operation, including maintaining redundancy of system component connections, data synchronization (configuration files, logs, and data), and full backup and recovery capabilities for the redundant system. The Contractor shall furnish all necessary parts, tools, hardware, and materials required to perform inspection, support, maintenance, and repair activities.

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Deliverable:

- a. Annual Systems Report
- b. Component List and Drawing

The vendor will provide and maintain a web-based reporting solution for the local VA EM to notify vendor and document issues, obtain resolutions and generate reports for the paging system throughout the contract period. The Contractor shall provide critical hardware and software upgrades within one business day of release after testing and staging and non-critical hardware and software upgrades within one month of release after testing and staging also ensuring all system documentation is current.

The Contractor shall perform onsite visits to ensure the proper operation of the components, training, and system performance and provide 24/7 telephone technical support for emergency troubleshooting as required. Immediate restoration of any down system must be provided along with the aid of on-site VA personnel. Restoration of the service within four hours of service affecting defective VA facility hardware and software components along with the aid of on-site VA personnel.

### **1.2 Training**

The Contractor shall provide onsite or virtual training to designated personnel at the C.W. Bill Young Department of Veterans Affairs Medical Center on the operation and technical maintenance of the equipment and systems. The Contractor shall make one on-site visit per year to be done in conjunction with the annual maintenance site visit providing system administration and end-user operations training, as needed and determined by the site. The Contractor shall conduct up to two additional remote/virtual or onsite training sessions per site per year for technical staff to accommodate new staff onboarding and proficiency in maintaining the paging system. The total number of training engagements is not to exceed three (3) sessions per year and will be determined by and coordinated with the Emergency Manager.

### **1.3 GRAY MARKET GOODS**

The Contractor must provide only new equipment and new parts for the required products described herein; no used, refurbished, or remanufactured equipment or parts shall be provided under any circumstances. **Absolutely no “Gray Market Goods” or “Counterfeit Electronic Parts” shall be provided.** Gray Market Goods are defined as genuine branded goods intentionally or unintentionally sold outside of an authorized sales-territory or by non-authorized dealers in an authorized territory. All equipment shall be accompanied by the Original Equipment Manufacturer’s (OEM’s) warranty. Counterfeit Electronic Parts are defined as unlawful or unauthorized reproduction, substitution, or alteration that has been knowingly mismarked, misidentified, or otherwise misrepresented to be an authentic, unmodified electronic part from the original manufacturer, or a source with the express written authority of the original manufacturer or current design activity, including an authorized aftermarket manufacturer. Unlawful or unauthorized substitution includes used electronic parts

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represented as new, or the false identification of grade, serial number, lot number, date code, or performance characteristics.

**2.0 NOTICE OF THE FEDERAL ACCESSIBILITY LAW AFFECTING ALL  
INFORMATION AND COMMUNICATION TECHNOLOGY (ICT)  
PROCUREMENTS (SECTION 508)**

On January 18, 2017, the Architectural and Transportation Barriers Compliance Board (Access Board) revised and updated, in a single rulemaking, standards for electronic and information technology developed, procured, maintained, or used by Federal agencies covered by Section 508 of the Rehabilitation Act of 1973, as well as our guidelines for telecommunications equipment and customer premises equipment covered by Section 255 of the Communications Act of 1934. The revisions and updates to the Section 508-based standards and Section 255-based guidelines are intended to ensure that information and communication technology (ICT) covered by the respective statutes is accessible to and usable by individuals with disabilities.

**2.1 SECTION 508 – INFORMATION AND COMMUNICATION TECHNOLOGY (ICT)  
STANDARDS**

The Section 508 standards established by the Access Board are incorporated into, and made part of all VA orders, solicitations and purchase orders developed to procure ICT. These standards are found in their entirety at: <https://www.access-board.gov/guidelines-and-standards/communications-and-it/about-the-ict-refresh/final-rule/text-of-the-standards-and-guidelines>. A printed copy of the standards will be supplied upon request.

Federal agencies must comply with the updated Section 508 Standards beginning on January 18, 2018. The Final Rule as published in the Federal Register is available from the Access Board: <https://www.access-board.gov/guidelines-and-standards/communications-and-it/about-the-ict-refresh/final-rule>.

The Contractor shall comply with “508 Chapter 2: Scoping Requirements” for all electronic ICT and content delivered under this contract. Specifically, as appropriate for the technology and its functionality, the Contractor shall comply with the technical standards marked here:

- ☐ E205 Electronic Content – (Accessibility Standard -WCAG 2.0 Level A and AA Guidelines)
- ☒ E204 Functional Performance Criteria
- ☒ E206 Hardware Requirements
- ☒ E207 Software Requirements
- ☒ E208 Support Documentation and Services Requirements

**2.2 COMPATIBILITY WITH ASSISTIVE TECHNOLOGY**

The standards do not require installation of specific accessibility-related software or attachment of an assistive technology device. Section 508 requires that ICT be

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compatible with such software and devices so that ICT can be accessible to and usable by individuals using assistive technology, including but not limited to screen readers, screen magnifiers, and speech recognition software.

### **2.3 ACCEPTANCE AND ACCEPTANCE TESTING**

Deliverables resulting from this solicitation will be accepted based in part on satisfaction of the Section 508 Chapter 2: Scoping Requirements standards identified above.

The Government reserves the right to test for Section 508 Compliance before delivery. The Contractor shall be able to demonstrate Section 508 Compliance upon Deliverables resulting from this solicitation will be accepted based in part on satisfaction of the Section 508 Chapter 2: Scoping Requirements standards identified above.

The Government reserves the right to test for Section 508 Compliance before delivery. The Contractor shall be able to demonstrate Section 508 Compliance upon delivery.

### **3.0 INFORMATION TECHNOLOGY USING ENERGY-EFFICIENT PRODUCTS**

The Contractor shall comply with Sections 524 and Sections 525 of the Energy Independence and Security Act of 2007; Section 104 of the Energy Policy Act of 2005; Executive Order 13834, "Efficient Federal Operations", dated May 17, 2018; Executive Order 13221, "Energy-Efficient Standby Power Devices," dated August 2, 2001; and the Federal Acquisition Regulation (FAR) to provide ENERGY STAR®, Federal Energy Management Program (FEMP) designated, low standby power, and Electronic Product Environmental Assessment Tool (EPEAT) registered products in providing information technology products and/or services.

The Contractor shall ensure that information technology products are procured and/or services are performed with products that meet and/or exceed ENERGY STAR, FEMP designated, low standby power, and EPEAT guidelines. The Contractor shall provide/use products that earn the ENERGY STAR label and meet the ENERGY STAR specifications for energy efficiency. Specifically, the Contractor shall:

1. Provide/use ENERGY STAR products, as specified at [www.energystar.gov/products](http://www.energystar.gov/products) (contains complete product specifications and updated lists of qualifying products).
2. Provide/use the purchasing specifications listed for FEMP designated products at [https://www4.eere.energy.gov/femp/requirements/laws\\_and\\_requirements/energy\\_star\\_and\\_femp\\_designated\\_products\\_procurement\\_requirements](https://www4.eere.energy.gov/femp/requirements/laws_and_requirements/energy_star_and_femp_designated_products_procurement_requirements). The Contractor shall use the low standby power products specified at <http://energy.gov/eere/femp/low-standby-power-products>.
3. Provide/use EPEAT registered products as specified at [www.epeat.net](http://www.epeat.net). At a minimum, the Contractor shall acquire EPEAT® Bronze registered products. EPEAT registered products are required to meet the technical specifications of ENERGY STAR, but are not automatically on the ENERGY STAR qualified

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product lists. The Contractor shall ensure that applicable products are on both the EPEAT Registry and ENERGY STAR Qualified Product Lists.

4. The Contractor shall use these products to the maximum extent possible without jeopardizing the intended end use or detracting from the overall quality delivered to the end user.

The following is a list of information technology products for which ENERGY STAR, FEMP designated, low standby power, and EPEAT registered products are available:

1. Computer Desktops, Laptops, Notebooks, Displays, Monitors, Integrated Desktop Computers, Workstation Desktops, Thin Clients, Disk Drives
2. Imaging Equipment (Printers, Copiers, Multi-Function Devices, Scanners, Fax Machines, Digital Duplicators, Mailing Machines)
3. Televisions, Multimedia Projectors

This list is continually evolving, and as a result is not all-inclusive.

**4.0 SHIPMENT OF HARDWARE OR EQUIPMENT**

No shipping should be necessary for this contract.

**Inspection:** Destination

**Acceptance:** Destination

**Free on Board (FOB):** Destination

**Ship To and Mark For:**

**CW Bill Young VAMC:**

|          | Primary |          | Alternate |
|----------|---------|----------|-----------|
| Name:    | _____   | Name:    | _____     |
| Address: | _____   | Address: | _____     |
| Voice:   | _____   | Voice:   | _____     |
| Email:   | _____   | Email:   | _____     |

**4.1 SPECIAL SHIPPING INSTRUCTIONS**

Prior to shipping, Contractor shall notify Site POCs, by phone followed by email, of all incoming deliveries including line-by-line details for review of requirements. The Contractor shall not make any changes to the delivery schedule at the request of Site POC.

Contractors shall coordinate deliveries with Site POCs before shipment of hardware to ensure sites have adequate storage space.

All shipments, either single or multiple container deliveries, shall bear the VA IFCAP Purchase Order number on external shipping labels and associated manifests or packing lists. In the case of multiple container deliveries, a statement readable near the



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VA IFCAP PO number shall indicate total number of containers for the complete shipment (e.g. "Package 1 of 2"), clearly readable on manifests and external shipping labels.

**Packing Slips/Labels and Lists shall also include the following:**

IFCAP PO #: \_\_\_\_\_ (e.g., 166-E11154 (the IFCAP PO number is located in block #20 of the SF 1449))

Project Description: (e.g. Tier I Lifecycle Refresh)

Total number of Containers: Package \_\_\_\_ of \_\_\_\_\_. (e.g., Package 1 of 3)

## **5.0 GENERAL REQUIREMENTS**

### **5.1 VA TECHNICAL REFERENCE MODEL**

The Contractor shall comply with the VA OIT Technical Reference Model (VA TRM). Compliance with the VA TRM is achieved by using only technologies and standards that are listed as approved for use in the VA TRM. The Contractor shall provide all necessary information requested by VA to ensure TRM approval is obtained prior to use on VA's network.

### **5.2 ZERO TRUST—VA CRITICAL SECURITY CONTROLS**

VA has established minimum mandatory security requirements and requires that any network connected software system or service must meet the VA Critical Security Controls as outlined in the VA Memorandum, "VA Security Controls", <https://www.voa.va.gov/DocumentView.aspx?DocumentID=5010>. VA Critical Security Controls identify the minimum mandatory requirements that must be implemented across all VA enterprise infrastructure, cloud computing environments, information systems, networks, and specialized devices (medical devices/systems, special-purpose systems, and research scientific computing devices) that process, store, and/or transmit VA data. Effective July 1, 2025, the Contractor shall implement these VA Critical Security Controls, within any network connected software system or service prior to being authorized for use in the VA. This functional requirement is not negotiable, and Plan of Action & Milestones (POAM) will not be accepted in the event these controls cannot be implemented for new systems. Critical Security Controls are intended to increase VA's security posture and provide security and privacy risk visibility into the VA network and is not a new requirement. The Contractor's failure to maintain these VA Critical Controls after implementation will result in VA discontinuing the use of the system.

### **5.3 SOCIAL SECURITY NUMBER (SSN) REDUCTION**

The Contractor solution shall support the Social Security Number (SSN) Fraud Prevention Act (FPA) of 2017 which prohibits the inclusion of SSNs on any document sent by mail. The Contractor support shall also be performed in accordance with Section 240 of the Consolidated Appropriations Act (CAA) 2018, enacted March 23, 2018, which mandates VA to discontinue using SSNs to identify individuals in all VA

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information systems as the Primary Identifier. The Contractor shall ensure that any new IT solution discontinues the use of SSN as the Primary Identifier to replace the SSN with the Integrated Control Number (ICN) in all VA information systems for all individuals. The Contractor shall ensure that all Contractor delivered applications and systems integrate with the VA Master Person Index (MPI) for identity traits to include the use of the ICN as the Primary Identifier. The Contractor solution may only use a Social Security Number to identify an individual in an information system if and only if the use of such number is required to obtain information VA requires from an information system that is not under the jurisdiction of VA.

#### **5.4 INTERNET PROTOCOL VERSION 6 (IPV6)**

The Contractor solution shall support IPv6-Only based upon the memo issued by the Office of Management and Budget (OMB) on November 19, 2020 (<https://www.whitehouse.gov/wp-content/uploads/2020/11/M-21-07.pdf>). Which defines IPv6-only as the state of an operational system or service when IPv4 protocol functions (addressing, packet forwarding) are not in use. The NIST USGv6 profile defines technical requirements for a product to be capable of operating in IPv6-Only environments. IPv6-Only technology, in accordance with the USGv6 Program (<https://www.nist.gov/programs-projects/usgv6-program/usgv6-revision-1>), NIST Special Publication (SP) 500-267B Revision 1 "USGv6 Profile" (<https://doi.org/10.6028/NIST.SP.500-267Br1>), and NIST SP 800-119 "Guidelines for the Secure Deployment of IPv6" (<https://doi.org/10.6028/NIST.SP.800-119>), compliance shall be included in all IT infrastructures, application designs, application development, operational systems and sub-systems, and their integration. In addition to the above requirements, all devices, applications, and systems shall support all applicable functionality on native IPv6-Only as well as dual stack (IPv6 / IPv4) connectivity without additional memory or other resources being provided by the Government, so that they can function in a mixed environment. All public/external facing servers and services (e.g., web, email, DNS, ISP services, etc.) shall support native IPv6-Only and dual stack (IPv6 / IPv4) users and all internal infrastructure and applications shall support using native IPv6-Only and dual stack (IPv6 / IPv4) for all functionality and operations.

#### **5.5 SOFTWARE AND LICENSING REQUIREMENTS**

The Contractor shall be responsible for the provision of all software licenses and any associated licensing maintenance required for any development, delivery, integration, operation, and/or maintenance associated with its proposed application(s), software products, software solution, and/or system including, but not limited to, any and all application(s), software and/or software products that comprise, are a part of, or integrate with the Contractor's proposed application(s), software products, software solution, and/or system for the life of any resulting contract.

#### **5.6 TRUSTED INTERNET CONNECTION (TIC)**

The Contractor solution shall meet the requirements outlined in Office of Management and Budget Memorandum M-19-26, "Update to the Trusted Internet Connections (TIC)

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Initiative“ (<https://www.whitehouse.gov/wp-content/uploads/2019/09/M-19-26.pdf>), VA Directive 6513 “Secure External Connections”, and shall comply with the TIC 3.0 Core Guidance Documents, including all Volumes and TIC Use Cases, found at the Cybersecurity & Infrastructure Security Agency (CISA) (<https://www.cisa.gov/publication/tic-30-core-guidance-documents>.)

### **5.7 GENERATIVE ARTIFICIAL INTELLIGENCE REQUIREMENTS**

If Artificial Intelligence (AI) is part of the Contractor system/solution, the Contractor shall be in compliance with E.O. 13960 and 14319, OMB Memorandums M-25-21, M-25-22, and M-26-04, and VA Directive and Handbook 6500 to support VA in trustworthy, secure, responsible, accountable, Truth Seeking, and Ideologically Neutral AI innovation.

No web-based, publicly available generative AI service has been approved for use with VA-sensitive data including, but not limited to OpenAI’s ChatGPT, Microsoft’s Copilot, Google’s Gemini, and Anthropic’s Claude. No PII, protected health information (PHI), or VA-sensitive data should be entered into these unapproved services. The entire definition of VA Sensitive Data can be found at 38 U.S.C. § 5727 (23). The Contractor shall protect VA Sensitive data from unauthorized disclosure or use, and from being used to train or improve the functionality of the vendor’s commercial offerings without express permission from VA.

The Contractor shall deliver the services, technical data, configurations, models, weights, documentation or other information, including source code, developed during contract performance. The Contractor, in collaboration with VA, must evaluate the output of any AI tool for accuracy prior to using the output in VA efforts. All data, including models, weights, algorithms, and outputs generated using either Government-furnished data or data first developed under this contract shall be the property of the Government with unlimited rights as defined by FAR 52.227-14. The Contractor shall also deliver any custom-developed code developed with AI methodologies in accordance with the SHARE IT Act, if applicable. VA shall also retain unlimited rights to any improvements to that data, including the continued design, development, testing, and operation of AI systems and/or systems utilizing AI.

The Contractor shall ensure that all AI Systems, including Large Language Models (LLM), whether standalone LLMs or integrated into broader software platforms, procured under this effort and/or used in performance of this contract complies with the Unbiased AI Principles as defined in Executive Order 14319 and OMB Memorandum M-26-04, e.g. Truth Seeking and Ideologically Neutral, as applicable to the intended use of the system.

The Contractor shall ensure that AI System/LLM generated outputs are truthful in responding to user prompts seeking factual information or analysis, prioritize historical accuracy, scientific inquiry, and objectivity, as well as acknowledge uncertainty where reliable information is incomplete or contradictory and do not fabricate, hallucinate, or present unverifiable information as fact.

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The Contractor shall ensure that LLMs and AI outputs are neutral, nonpartisan tools that do not manipulate responses in favor of ideological dogmas such as Diversity, Equity, and Inclusion (DEI). The Contractor shall ensure that the LLMs, including the AI System, are not intentionally encoded with partisan or ideological judgments within an AI System's/LLM's outputs unless those judgments are prompted by or otherwise readily accessible to the end user.

Compliance with the AI requirements of this contract, including adherence to the Unbiased AI Principles, Truth-Seeking and Ideological Neutrality requirements, disclosure obligations, monitoring and reporting requirements, and corrective action responsibilities, is a material condition of eligibility for payment and continued performance. In accordance with OMB Memorandum M-26-04, failure to comply with these requirements, or refusal to take timely and appropriate corrective action to remedy identified noncompliance, may constitute a material breach of contract and may result in remedies consistent with the terms of the contract and applicable law including but not limited to withholding of payment, termination for cause/default, or other appropriate contractual remedies, as determined by the Contracting Officer.

All AI for delivery and/or use in performance of the contract shall adhere to the VA *Trustworthy AI Framework*, available at <https://department.va.gov/ai/trustworthy/>. Once the Contractor has obtained CO authorization to use specific AI in contract performance, the Contractor shall provide the COR a signed Statement of Attestation prior to AI implementation as identified in the Artificial Intelligence in VA Contracts clause, to include its associated list of AI being used in contract performance.

## **6.0 SECURITY AND PRIVACY REQUIREMENTS**

The Assessment and Authorization (A&A) requirements do not apply and a Security Accreditation Package is not required

All VA sensitive information shall be protected at all times in accordance with local security field office System Security Plans (SSP's) and Authority to Operate (ATO)'s for all systems/LAN's accessed while performing the tasks detailed in this Product Description.

- a. A prohibition on unauthorized disclosure: "Information made available to the Contractor or Subcontractor by VA for the performance or administration of this contract or information developed by the Contractor/Subcontractor in performance or administration of the contract shall be used only for those purposes and shall not be used in any other way without the prior written agreement of the VA." This clause expressly limits the Contractor/Subcontractor's rights to use data as described in Rights in Data – General, FAR 52.227-14(d).(1).
- b. A requirement for data breach notification: Upon discovery of any known or suspected security/privacy incidents, or any unauthorized disclosure of

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sensitive information, including that contained in system(s) to which the Contractor/Subcontractor has access, the Contractor/Subcontractor shall immediately notify the COR and simultaneously, the designated ISO, and Privacy Officer for the contract. The term “security incident” means an event that has, or could have, resulted in unauthorized access to, loss or damage to VA assets, or sensitive information, or an action that breaches VA security procedures. See VA Handbook 6500.6, Appendix C, paragraph 6.a.

- c. A requirement to pay liquidated damages in the event of a data breach: “In the event of a data breach or privacy incident involving SPI the contractor processes or maintains under this contract, the contractor shall be liable to VA for liquidated damages for a specified amount per affected individual to cover the cost of providing credit protection services to those individuals.” However, it is the policy of VA to forgo collection of liquidated damages in the event the Contractor provides payment of actual damages in an amount determined to be adequate by the agency.

Based on the determinations of the independent risk analysis, the Contractor shall be responsible for paying to VA liquidated damages in the amount of \$37.50 per affected individual to cover the cost of providing credit protection services to affected individuals consisting of the following:

- 1) Notification;
  - 2) One year of credit monitoring services consisting of automatic daily monitoring of at least 3 relevant credit bureau reports;
  - 3) Data breach analysis;
  - 4) Fraud resolution services, including writing dispute letters, initiating fraud alerts and credit freezes, to assist affected individuals to bring matters to resolution;
  - 5) One year of identity theft insurance with \$20,000.00 coverage at \$0 deductible; and
  - 6) Necessary legal expenses the subjects may incur to repair falsified or damaged credit records, histories, or financial affairs
- d. A requirement for annual security/privacy awareness training: “Before being granted access to VA information or information systems, all Contractor employees and Subcontractor employees requiring such access shall complete on an annual basis either: (i) the VA security/privacy awareness training (contains VA security/privacy requirements) within 1 week of the initiation of the contract, or (ii) security awareness training provided or arranged by the contractor that conforms to VA’s security/privacy requirements as delineated in the hard copy of the VA security awareness training provided to the Contractor. If the Contractor provides their own training that conforms to VA’s requirements, they will provide the COR or CO, a yearly report (due annually on the date of the contract initiation) stating that all applicable employees involved in VA’s contract have received their annual security/privacy training that meets VA’s requirements and the total number of employees trained. See VA Handbook 6500.6, Appendix C, paragraph 9.

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A requirement to sign VA's Rules of Behavior: "Before being granted access to VA information or information systems, all Contractor employees and Subcontractor employees requiring such access shall sign on annual basis an acknowledgement that they have read, understand, and agree to abide by VA's Contractor Rules of Behavior which is attached to this contract." See VA Handbook 6500.6, Appendix C, paragraph 9, and Appendix D. Note: If a medical device vendor anticipates that the services under the contract will be performed by 10 or more individuals, the Contractor Rules of Behavior may be signed by the vendor's designated representative. The contract must reflect by signing the Rules of Behavior on behalf of the vendor that the designated representative agrees to ensure that all such individuals review and understand the Contractor Rules of Behavior when accessing VA's information and information systems.

**7.0 POINTS OF CONTACT**

**VA Program Manager/COR:**

Name:  
Address:  
Voice:  
Email:

**Emergency Manager:**

Name:  
Address:  
Voice:  
Email:

**Contracting Officer**

Name:  
Address:  
Phone:  
Email:

**Contract Specialist:**

Name:  
Address:  
Voice:  
Email:

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**INFORMATION SECURITY CONSIDERATIONS**

All VA sensitive information shall be protected at all times in accordance with local security field office System Security Plans (SSP's) and Authority to Operate (ATO)'s for all systems/LAN's accessed while performing the tasks detailed in this Product Description.

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